

**FEDERAL MARITIME COMMISSION**  
**Office of the Administrative Law Judges**

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

**DOCKET NO. 25-05**

Served: May 6, 2025

---

**ORDER OF:** Richard AMBROW, *Administrative Law Judge*.

---

**ORDER TO SHOW CAUSE**

**I. Respondent Ejike Dickson Eze d/b/a Ejike International Trade Limited (“Ejike International Trade”) is in Default and Must Respond to this Order**

Francis Sheka Kanu (“Complainant”) filed a Complaint with the Office of the Secretary on March 10, 2025, naming three Respondents: Ejike International Trade, SeaLines International and SeaMates International, Inc. (“SeaLines”), and Maersk. The Office of the Secretary issued a Notice of Filing of the Complaint on March 17, 2025 (the “Notice”).

In brief, the Complaint alleges that in June 2021, Complainant contracted with Ejike International Trade to have a container shipped to Sierra Leone. (Complaint, at 2-3). In turn, Ejike International Trade made arrangements with SeaLines and Maersk. (*Id.*, at 3). Instead of being shipped to Sierra Leone, the container was shipped to Congo. (*Id.*, at 4). Complainant was eventually required to pay additional funds. (*Id.*, at 5-6). Complainant brings claims against the Respondents under the Shipping Act, and seeks reparations and other relief. (*Id.*, at 6-9).

The Commission’s rules provide that:

A respondent must file with the Commission an answer to the complaint . . . within 25 days after the date of service of the complaint by the Commission . . . or unless a motion is filed to withdraw or dismiss a complaint, in which latter case, answer must be filed within 10 days after service of an order denying such motion.

(46 C.F.R. § 502.62(b)).

A party to a proceeding may be deemed to be in default if that party fails: “to answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding.” (46 C.F.R. § 502.65(a)(2)).

Although the Complaint was served by the Office of the Secretary on March 17, 2025, Respondent Ejike International Trade did not respond to the Complaint on or before April 11, 2025, and therefore appears to be in default. There may be some valid reason why Respondent Ejike International Trade has failed to respond. Therefore, Respondent Ejike International Trade will be granted additional time to respond to the proceeding and show cause why judgment should not be entered. If Respondent Ejike International Trade fails to respond to this order by May 20, 2025, a default decision may be entered against Ejike International Trade, including an award of reparations to the Complainant, plus additional penalties.

## **II. Complainant Failed to Respond Timely to the Maersk Motion to Dismiss, as well as the SeaLines Motion to Dismiss, and Must Respond to this Order**

On April 10, 2025, Respondent Maersk filed a Motion to Dismiss (the “Maersk MTD”). Respondent Maersk filed its original Certification of Service (“Maersk COS”) on April 10, 2025, showing service on Complainant using francesgates@bellsouth.net (*i.e.*, the email address in the Complainant’s Notice of Appearance). On April 16, 2025, Respondent Maersk filed an Amended Certification of Service (“Maersk ACOS”) showing that Complainant was served on April 11, 2025, via email using francesgats@bellsouth.net (*i.e.*, the email address in the Complaint), as well as FedEx, and that Complainant was served via regular mail on April 16, 2025.

On April 11, 2025, SeaLines filed a Motion to Dismiss (the “SeaLines MTD”) and accompanying Memorandum of Law. Per SeaLines’s original certificate of service (“SeaLines COS”), Complainant was served on April 11, 2025, via email at francesgates@bellsouth.net. Also on April 11, 2025, SeaLines filed additional certificates of service, the last one stating that the SeaLines MTD and accompanying Memorandum of Law were served on Complainant via email on April 11, 2025, at francesgats@bellsouth.net. (*See* Second Amended Certificate of Service of Motion to Dismiss (“SeaLines ACOS”)).

All pleadings, documents and papers of every kind: “must show that service has been made upon all parties to the proceeding . . . by delivering one copy to each party; by email; in-person hand delivery; or United States mail service, and be properly addressed with postage prepaid; by courier; or by facsimile.” (46 C.F.R. § 502.114(a)).

A response to a dispositive motion, such as a motion to dismiss, “much be served and filed within 15 days after the date of service of the motion.” (46 C.F.R. § 502.70(b); *see also* 46 C.F.R. § 502.69(g) (defining “dispositive motion” to include a motion to dismiss)).

Complainant was served with the Maersk MTD, as well as SeaLines MTD and accompanying Memorandum of Law, by email on April 10, 2025, and April 11, 2025, respectively, at the two email addresses for Respondent in the record: francesgates@bellsouth.net (*see* Complainant’s Notice of Appearance) and francesgats@bellsouth.net (*see* Complaint). (*See* Maersk COS; Maersk ACOS; SeaLines COS; SeaLines ACOS).

Service by email is a valid form of service. (46 C.F.R. § 502. 114(a)). I find that the Maersk MTD, as well as the SeaLines MTD, were both served no later than April 11, 2025, which is the date by which both email addresses provided by Complainant (francesgates@bellsouth.net and francesgats@bellsouth.net) were served. Therefore, Complainant had until April 28, 2025,<sup>1</sup> to file a response to the Motions to Dismiss. (46 C.F.R. § 502.70(b)). Complainant has not responded to either Motion to Dismiss.

Complainant may also have a valid reason for failing to respond to the Motions to Dismiss in a timely matter. Complainant will be given additional time to respond to the Maersk MTD and SeaLines MTD and explain why Complainant was unable to respond within the time permitted. If Complainant fails to respond to this order by May 20, 2025, Complainant's claims against Maersk and/or SeaLines may be dismissed for failure to prosecute.

### **III. Order**

Based on the above, it is:

**HEREBY ORDERED** that Respondent **Ejike International Trade** must respond to the complaint and show cause why a decision on default should not be entered no later than **May 20, 2025**. It is

**FURTHER ORDERED** that **Complainant** must respond to the Maersk Motion to Dismiss, as well as the SeaLines Motion to Dismiss, and show cause why its response should be considered no later than **May 20, 2025**.

Richard C.  
Ambrow Jr - S

Digitally signed by  
Richard C. Ambrow Jr -  
S  
Date: 2025.05.06  
06:30:47 -07'00'

---

Richard Ambrow  
Administrative Law Judge

---

<sup>1</sup> Because fifteen days after April 11, 2025, was a Saturday, the response deadline was extended until the following Monday, April 28, 2025. (See 46 C.F.R § 502.101).